

Calendar Line 5

Case Name: *Salinas, et al. v. Giuliani Construction and Restoration, Inc.*

Case No.: 23CV428291

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiffs Guadalupe Salinas, Guadalupe Ramos Marquez, and Jose Antonio Ramirez Vecerra (collectively, “Plaintiffs”) allege defendant Giuliani Construction and Restoration, Inc. committed various wage and hour violations.

Before the Court is Defendant’s motion to enforce settlement, which is opposed. For reasons discussed below, the Court GRANTS Defendant’s motion to enforce the settlements and DENIES the request to dismiss the class and PAGA claims.

I. BACKGROUND

According to the allegations of the operative second amended complaint (“SAC”), Defendant failed to: provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; maintain accurate payroll statements; provide complete and accurate wage statements; pay wages (overtime and minimum wages); pay sick wages; pay wages due upon termination; and reimburse for necessary business expenses.

On December 28, 2023, Plaintiff Salinas initiated this action with the filing of the Complaint and on September 10, 2024, Plaintiff Salinas filed the first amended complaint, which asserted the following causes of action: (1) PAGA penalties; (2) Failure to Pay Wages-Unpaid Commissions (Lab. Code §§ 204, 1194, 1194.2, and 1197); (3) Failure to Timely Pay Final Wages at Termination (Lab. Code §§ 201-203); (4) Failure to Provide Accurate Itemized Wage Statements (Lab. Code § 226); (5) Failure to Indemnify Employees for Expenditures (Lab. Code § 2802); (6) Unfair Business Practices (Bus. & Prof. Code §§ 17200, *et seq.*); and (7) Breach of Contract.

On October 29, 2025, Plaintiffs filed the operative SAC, which asserts the following causes of action: (1) Failure to Pay Minimum Wages (Lab. Code §§ 204, 1194, 1194.2, and 1197); (2) Failure to Pay Overtime Compensation (Lab. Code §§ 1194 and 1198); (3) Failure to Provide Meal Periods (Lab. Code §§ 226.7, 512); (4) Failure to Authorize and Permit Rest Breaks (Lab. Code §§ 226.7); (5) Failure to Indemnify Necessary Business Expenses (Lab. Code § 2802); (6) Failure to Timely Pay Final Wages at Termination (Lab. Code §§ 201-203); (7) Failure to Provide Accurate Itemized Wage Statements (Lab. Code § 226); (8) Unfair Business Practices (Bus. & Prof. Code §§ 17200, *et seq.*); (9) Civil Penalties Under PAGA (Cal. Lab. Code § 2698, *et seq.*); (10) Failure to Pay Wages – Unpaid Commissions (Cal. Lab. Code §§ 204, 1194, 1194.2, and 1197); (11) Failure to Timely Pay Final Wages at Termination (Cal. Lab. Code §§ 201-203); (12) Failure to Provide Accurate Itemized Wage Statements (Cal. Lab. Code § 226); (13) Failure to Indemnify Employees for Expenditures (Cal. Lab. Code § 2802); (14) Unfair Business Practices (Cal. Bus. & Prof. Code §§ 17200, *et seq.*); and (15) Breach of Contract.

Plaintiffs Ramos Marquez and Ramirez assert causes of action one through eight on a class basis; Plaintiffs Salinas and Ramirez assert the ninth cause of action for PAGA penalties; Plaintiff Salinas individually asserts causes of action ten through fifteen. On April 15, 2026,

the Court granted Plaintiffs' request to dismiss Plaintiffs Salinas and Ramos Marquez' individual claims without prejudice. Consequently, only the class allegations and representative PAGA allegations remain.

II. REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of the following items:

- (1) Plaintiff's SAC, filed on October 29, 2025: Exhibit A;
- (2) Plaintiffs' request for dismissal of individual class claims: Exhibit B;
- (3) The Court's Order granting Plaintiffs' request for dismissal: Exhibit C; and
- (4) Printout for search results for California Department of Industrial Relations PAGA Case Search accessed on May 4, 2026: Exhibit D.

Evidence Code section 452, subdivision (d), permits judicial notice of records of any court of this state or any court of record of the United States or of any state of the United States. (Code Civ. Proc., § 452, subd. (d).) Exhibits A-C are court records, therefore they are proper items of judicial notice. Thus, the Court takes judicial notice of the existence of the documents and the legal effect of the court orders but does not take notice of the truth of any disputed contents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81.) With regard to Exhibit D, the Court will take judicial notice of only the existence of the document under Evidence Code section 452, subd. (h). Defendant's request for judicial notice is GRANTED.

III. MOTION TO ENFORCE SETTLEMENT

Defendant moves to enforce the settlement agreements with Plaintiffs.

A. Legal Standard

Code of Civil Procedure section 664.6 provides, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) The purpose of section 664.6 is "to permit a court, via a summary proceeding, to finally dispose of an action when the existence of the agreement or the terms of the settlement are subject to reasonable dispute, something not permissible before the statute's enactment." (*Viejo Bancorp, Inc. v. Wood* (1989) 217 Cal.App.3d 200, 206.)

"*'If requested by the parties,' . . . 'the [trial] court may retain jurisdiction over the parties to enforce [a] settlement until performance in full of the terms of the settlement.'* (Code Civ. Proc., § 664.6, italics added.) 'Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement.' [Citations.]" (*Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917 (*Mesa*), italics in original.) "[T]he request for retention of jurisdiction must conform to the same three requirements which the Legislature and the courts have deemed necessary for section 664.6 enforcement of the settlement itself: the request must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety,

(2) by the parties themselves, and (3) either in a writing signed by the parties or orally before the court.” (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 440.) “The request to the court that it retain jurisdiction under section 664.6 must be made by the parties. [Citation.]” (*Mesa, supra*, 33 Cal.App.5th at p. 918.)

The court may interpret the terms of the settlement agreement on a motion to enforce such an agreement. “[I]f the requirements of section 664.6 are met the trial court is authorized to resolve remaining questions of disputed fact or interpretation.” (*City of Fresno v. Maroot* (1987) 189 Cal.App.3d 755, 760, fn. 3.) “Section 664.6’s ‘express authorization for trial courts to determine whether a settlement has occurred is an implicit authorization for the trial court to interpret the terms and conditions to settlement.’” (*Skulnick v. Roberts Express, Inc.* (1992) 2 Cal.App.4th 884, 889.)

“In ruling on a motion to enter judgment [or to confirm settlement] the trial court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement. Trial judges may consider oral testimony or may determine the motion upon declarations alone.” (*Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1454.) However, “[t]he power of the trial court under Code of Civil Procedure section 664.6...is extremely limited...[in that] nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*Hernandez v. Board of Ed. Of the Stockton Unified School Dist.* (2004) 126 Cal.App.4th 1161, 1176, internal quotation marks and citations omitted). This is so because “[a] settlement agreement is simply a contract.” (*Ibid.*) Thus, “[t]he court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.” (*Ibid.*)

B. Discussion

In deciding a motion pursuant to section 664.6, a court may receive evidence, determine disputed facts including the terms the parties previously agreed upon, and enter the terms of a settlement agreement as a judgment, but may not create new material terms. (See *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360.) Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties’ obligations and to determine whether those obligations have been performed or breached.” (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209 (*Bustamante*), [internal quotation marks and citation omitted].) The modern trend is to favor holding settlement agreements enforceable notwithstanding claimed uncertainty unless the uncertainty prevents the court from knowing what to enforce. (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 736.)

In December 2025 and January 2026, the Chief Executive Officer (“CEO”) for Defendant, Anthony Giuliani, on his own accord, arranged meetings and negotiated settlements directly with all three named Plaintiffs. (Motion, p. 1: 19-21.) On December 11, 2025, he met with Plaintiff Vecerra and the parties agreed to settle for \$10,000 and they signed a written agreement that included a dismissal with prejudice and a release of Plaintiff Vecerra’s individual and PAGA claims. (Giuliani Declaration (“Decl.”), ¶¶ 3-5.) In January 2026, he met with Plaintiff Ramos Marquez and they reached a settlement of \$3,000. (Giuliani Decl., ¶ 6.) They signed the agreement on January 9, 2026, which included a release of his individual claims and an agreement to dismiss with prejudice. (Giuliani Decl., ¶¶ 7-9; Declaration of

Lindsey LaBelle (“LaBelle Decl.”), ¶¶ 3-4.) On January 13, 2026, Plaintiff Salinas signed the settlement agreement which resolved his claims for \$5,000, in exchange for a release of all his claims and his agreement to dismiss his action with prejudice. (Giuliani Decl., ¶¶ 11-13; LaBelle Decl., ¶¶ 6-7.) Defendant presents evidence that the settlement agreements were negotiated between Giuliani and the individual Plaintiffs—each Plaintiff was provided the opportunity to review the agreement and ask questions. Defendant fully performed by paying the agreed upon amounts. The agreements required Plaintiffs to dismiss their claims with prejudice, however, Plaintiffs’ counsel filed a request for dismissal of Plaintiffs Salinas and Ramos Marquez’s claims *without prejudice*.

While Plaintiffs mention that the settlement agreements “reek of bad faith,” they do not offer any actual argument or evidence on this point, therefore this argument is waived. (*See Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (*Badie*) [“When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived.”])

Defendant provides a copy of each agreement. (See Declaration of Andrew Kozlow (“Kozlow Decl.”), ¶ 4, Exh. A.) Here, the parties agreed on all material settlement terms and there is no evidence to the contrary before the Court at this time, nor is there evidence to establish fraud, coercion, or duress. Thus, the Court finds that the parties entered into an enforceable agreement. (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182-1183.) Thus, based on the agreements, the motion to enforce settlement is GRANTED as to each Plaintiffs’ individual claims. Accordingly, Plaintiffs must dismiss their individual claims with prejudice.

However, the issue of whether the class and PAGA actions must be dismissed with prejudice remains and will be addressed by the Court below.

1. Dismissal of Class Claims

California Rule of Court, rule 3.770(a), requires court approval to dismiss a party in a class action once it is filed. (See Rules of Ct., Rule 3.770(a).) “Rule 3.770 provides that if the class action is dismissed prior to certification and/or notice, the action may be dismissed without notice to the class members if the court finds that the dismissal will not prejudice them.” (*Citizens of Humanity, LLC v. Ramirez* (2021) 63 Cal.App.5th 117, 124.) In a class action, the court must protect absent class members and may not allow their rights to be impaired by a settlement to which they were not parties to. (*Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 341.)

Here, Defendant does not make a sufficient showing that the class claims should be dismissed. Enforcement of the settlement agreements which require dismissal of individual claims does not automatically entitle Defendant to dismissal of the class claims. (See *La Sala v. Am. Sav. & Loan Ass’n* (1971) 5 Cal.3d 864, 871 [before class claims can be dismissed, the court must at least afford an opportunity to amend the complaint, redefine the class, or add a new representative plaintiff]; see also *Schoshinski v. City of Los Angeles* (2017) 9 Cal.App.5th 780, 801-802 [“The policy concerns underlying the ‘pick off’ exception are the desire to avoid ‘revolving door’ litigation, whereby the defendant uses a tactic to avoid a class action, to the detriment of putative class members who cannot afford to initiate or join a litigation, and inviting a wage of judicial resources.”].) Moreover, approval of dismissal of an entire class action under rule 3.770(a), requires a declaration which clearly states, “whether consideration,

direct or indirect, is being given for the dismissal and must describe the consideration in detail.” (Rules of Ct., Rule 3.770(a).) Here, no such declaration has been filed. Therefore, to the extent Defendant requests dismissal of the class claims, the request is DENIED.

2. Dismissal of PAGA Claims

Defendant argues that with the release of Plaintiff Salinas’ and Plaintiff Ramirez Vecerra’s individual PAGA claims, there is no “aggrieved employee” with standing to maintain a representative action.

Under the pre-amendment statute, PAGA standing required only that a person was employed by the alleged violator and that it was against who one or more violations were committed. (See *Kim v. Reins Internat. Cal.* (2020) 9 Cal.5th 73, 83-84 (*Kim*).) For PAGA notices filed on or after June 19, 2024, the amended PAGA statute defines an aggrieved employee as a person who was employed by the alleged violator and personally suffered each of the violations alleged in the relevant period. (Labor Code § 2699, subd. (c)(1).)

In *Kim, supra*, the court held that the resolution of an employee’s individual claims does not strip that employee of standing pursuant to PAGA remedies and does not eliminate court and LWDA review pursuant to Labor Code section 2699, subdivision (1)(2). Contrary to Defendant’s assertion, the holding in *Kim*, was not limited to settlement agreements that included carve-outs for representative claims. Plaintiff Ramirez Vecerra filed his notice on August 4, 2024, thus the amended statute applies. Here, the Court is persuaded by Plaintiff’s argument that the resolution of Plaintiff Ramirez Vecerra’s individual claims does not eliminate the injury that conferred standing. Moreover, the language of his settlement agreement released “all of his alleged wage and hour claims,” however, the language does not release representative claims. Thus, to the extent Defendant request dismiss of Plaintiff Ramirez Vecerra’s representative PAGA claims, it is DENIED.

Plaintiff Salinas filed his notice prior to June 19, 2024, thus the pre-amendment statute governs. Settlement of Plaintiff Salinas’ individual claims does not erase the injury to support standing and a plaintiff who settled all individual claims still retains PAGA standing. (See *Kim, supra*, 9 Cal.5th at pp. 83-84; *Parsonage v. Wal-Mart Associates, Inc.* (2026) 118 Cal.App.5th 399, 421.) As with Plaintiff Ramirez Vecerra, Plaintiff Salinas’ settlement agreement did not include a release of representative PAGA claims. Thus, Defendant does not establish a basis for dismissal of his representative PAGA claims. Accordingly, to the extent Defendant requests dismissal of Plaintiff Salinas’ representative PAGA claim, it is DENIED.

IV. CONCLUSION

Defendant’s motion to enforce Plaintiffs’ respective settlement agreements is GRANTED. Defendant’s request to dismiss Plaintiffs’ class and PAGA claims is DENIED.

The Court will prepare the order.

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Calendar Line 6

Case Name: *Asefash Rivera v. Stanford Health Care*

Case No.: 24CV453093

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Asefash Rivera alleges that defendant Stanford Health Care committed various wage and hour violations.

Before the Court is Defendant’s petition for coordination and motion to stay proceedings, which is unopposed. For reasons discussed below, the Court GRANTS the motion.

V. BACKGROUND

According to the allegations of the operative first amended complaint (“FAC”), Plaintiff worked as a Clinical Assistant/Medical Assistant/Patient Care Coordinator on an hourly, non-exempt basis. (FAC, ¶ 9.) Defendant failed: pay all wages owed, including minimum and overtime wages; provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; provide complete and accurate wage statements; timely pay wages; provide suitable resting facilities; and reimburse for necessary business expenses. (FAC, ¶¶ 18-26.)

Plaintiff initiated this action on December 2, 2024, with the filing of the Complaint and on January 6, 2025, she filed the operative FAC, which asserts the following causes of action: (1) failure to pay for all hours worked, including overtime hours worked; (2) failure to pay all wages owed twice per month; (3) failure to pay minimum wage; (4) rest break violations; (5) meal break violations; (6) failure to reimburse for required business expenses; (7) failure to provide accurate itemized wage statements & violation of record keeping requirements; (8) unlawful business practices; and (9) PAGA penalties.

VI. PETITION FOR COORDINATION

Defendant moves to coordinate the following cases:

- (1) *Asefash Rivera v. Stanford Health Care* (24CV453093) (*Rivera*), filed in Santa Clara County Superior Court on December 2, 2024;
- (2) *Joanne Ibay v. Stanford Health Care* (25CV477482) (*Ibay* Class Action), filed in Santa Clara County Superior Court on October 13, 2025;
- (3) *Jade Capwell v. Stanford Health Care* (26CV485505) (*Capwell*), filed in Santa Clara County Superior Court on January 26, 2026;
- (4) *Joanne Ibay v. Stanford Health Care* (26CV485937) (*Ibay* PAGA Action), filed in Santa Clara County Superior Court on February 2, 2026; and,
- (5) *Melissa Hirabayashi, et al. v. Stanford Health Care* (26-CIV-00864) (*Hirabayashi*), filed in San Mateo County Superior Court on February 4, 2026.

C. Legal Standard